

		<i>Inc.</i> (2010) 180 Cal.App.4th 1213, 1228-1229.) “A warranty relates to the title, character, quality, identity, or condition of the goods. The purpose of the law of warranty is to determine what it is that the seller has in essence agreed to sell.” (<i>Keith v. Buchanan</i> (1985) 173 Cal.App.3d 13, 20.) Based on those warranties, the seller is bound to deliver and the buyer to accept goods that match the warranties made. (<i>Ibid.</i>) Written warranties are merely a written statement of promises made to the consumer prior to a purchase, which constitute a declaration of the facts presented or promises made to the consumer in connection with the sale of a good. (Commercial Code, § 2313; Civil Code, §§ 1791.2, 1790.3; 15 U.S.C. § 2301(6).) While the seller may be held to the promises/warranties it made to a consumer prior to the sale of a vehicle, the written warranties do not constitute a contract between the manufacturer and the buyer. Rather, it is the retail installment sales contract that evidences the transaction. For these reasons, the court finds that Defendant has failed to establish that an enforceable arbitration agreement exists between Defendant and Plaintiff as it relates to the Owner’s Warranty. The motion is DENIED. Case Management Conference is continued to October 29, 2026 at 09:00 am in Department C10. Defendant to give notice.
7	Provenzano vs. Oremor Automotive Group, LLC	<u>Motion 1. Motion to Compel Responses to Special Interrogatories</u> <u>Motion 2. Motion to Compel Responses to Form Interrogatories</u> <u>Motion 3. Motion to Compel Responses to Requests for Production of Documents</u> <u>Motion 4. Motion to Deem Requests for Admission Admitted</u> The Court GRANTS Plaintiff ONM Environmental, Inc.’s motions to compel verified responses from Defendant Oremor Automotive Group, LLC to Form Interrogatories (Set One), Special Interrogatories (Set One), and Request for Production of Documents (Set One). The Court GRANTS Plaintiff ONM Environmental, Inc.’s motion to deem Requests for Admission (Set One) admitted by Defendant Oremor Automotive Group, LLC. A party may move for an order compelling responses to discovery at any time “[i]f a party to whom [discovery requests] are directed fails to serve a timely response.” (Code Civ. Proc., §§ 2030.290(b), 2031.300(b).) For a motion to compel initial discovery responses, all a propounding party must show is that it properly served its discovery requests, that the time to respond has expired, and that the party to whom the requests were directed failed to provide a timely response. (<i>See Leach v. Superior Court</i> (1980) 111 Cal.App.3d 902, 905-906.)